

Judgment Sheet

IN THE LAHORE HIGH COURT
JUDICIAL DEPARTMENT

C.R.No.2517 of 2014

Ghulam Raza, etc.
Vs.
Mureed Abbas, etc.

J U D G M E N T

Date of hearing	27.01.2022
Petitioners By:	Mr. M. Ramzan Ch., Advocate
Respondents By:	Mr. Junaid Shehzad Tarar, Advocate for respondent Nos.1 to 4, 7 and 8. Mr. Sultan Haider Ali Malik, Advocate for respondent No.5.

Faisal Zaman Khan, J:- Through this civil revision judgments and decrees dated 12.02.2011 and 01.07.2014 passed by the learned Civil Judge, Bhakkar and learned Additional District Judge, Bhakkar, respectively, have been assailed. By virtue of the former judgment a suit for declaration and perpetual injunction instituted by the petitioners has been dismissed and through the latter the same has been upheld.

2. Succinctly, the facts of the case are that Muhammad Nawaz alias Muhammad s/o Haider **(Deceased)** grandfather of the petitioners was owner of the land in dispute (details of which have been given in the headnote of the plaint). A suit for declaration and perpetual injunction was instituted by the petitioners against the respondents alleging therein that through an oral gift the land in dispute was gifted to them by the deceased, subsequent to which the oral gift was reduced into writing and a gift deed was also executed on 12.06.2004. They had also thrown a challenge to mutation of inheritance No.3008 dated 28.04.2005 sanctioned after the death of

deceased. Written statements were filed by the respondents denying the claim/title of the petitioners. Out of divergent pleadings of the parties, as many as 09 issues were framed, evidence *pro* and *contra* was led, whereafter, through judgment and decree dated 12.02.2011 the suit was dismissed. Feeling aggrieved, petitioners preferred an appeal, which also met the same fate and was dismissed vide judgment and decree dated 01.07.2014, hence, this civil revision.

3. At the outset of hearing, learned counsel for the petitioners has been confronted with the following queries:-

- a. that it is the case of the petitioners that through an oral gift the land in dispute was gifted to them by the deceased and subsequently the said oral transaction was reduced into writing, however, in their plaint petitioners have not mentioned the necessary details of the said oral transaction, thus, even if they have been able to prove the gift deed (Exh.P1), since they have not been able to prove the initial transaction of oral gift, hence, they have failed to prove the alleged gift;
- b. that in Exh.P1 nothing has been mentioned about the oral gift allegedly made by the deceased in favour of the petitioners, thus, the said document is of no avail to the petitioners to prove their case;
- c. that as the petitioners were the beneficiaries of Exh.P.1, which was denied by the respondents, in order to prove the same they produced its two marginal witnesses as PW.1 and PW.3, however PW.1 in his cross examination has admitted that he does not know what was written in the gift deed, therefore, they have failed to prove the said document; and
- d. that at the time of execution of gift deed petitioners were minors, therefore, they were not competent to

execute Exh.P1 or to complete the necessary ingredients of gift (acceptance and receipt of possession).

4. Despite his earnest effort, learned counsel for the petitioners has not been able to put forth any plausible explanation, however, his insistence is on the fact that since the oral transaction of gift was translated into a written gift deed, which has been proved by the petitioners by way of producing its marginal witnesses, thus, the courts below erred in law in deciding against the petitioners.

5. Conversely, learned counsel for the respondents supported the impugned judgments and decrees and prayed for dismissal of the revision petition.

6. Arguments heard. Record perused.

7. The point requiring determination by this Court is as to whether petitioners have been able to prove the alleged gift made in their favour by the deceased. It shall be important to mention here that since there were two segments of the alleged gift made in favour of the petitioners i.e. oral gift which was subsequently reduced into writing, thus, the petitioners were supposed to prove both these transactions separately.

8. It has been held by the Honourable Supreme Court of Pakistan in judgment reported as Muhammad Shafiq Ullah and others v. Allah Bakhsh (deceased) through L.Rs. and others (2021 SCMR 763), Saddaruddin (since deceased) through L.Rs. v. Sultan Khan (since deceased) through L.Rs. and others (2021 SCMR 642), Muhammad Riaz and others v. Mst. Badshah Begum and others (2021 SCMR 605), Atta Muhammad and others v. Mst. Munir Sultan (deceased) through her L.Rs. and others (2021 SCMR 73), Muhammad Yaqoob v. Mst. Sardaran Bibi and others (PLD 2020 S.C. 338), Jubilee General Insurance Co. Ltd. Karachi v. Ravi Steel Company, Lahore (PLD 2020 S.C. 324), Muhammad Nawaz and

others v. Sakina Bibi and others (2020 SCMR 1021), Muhammad Sarwar v. Mumtaz Bibi and others (2020 SCMR 276), Moiz Abbas v. Mrs. Latifa and others (2019 SCMR 74), Allah Ditta and others v. Manak alias Muhammad Siddique and others (2017 SCMR 402), Peer Baksh through L.Rs. and others v. Mst. Khanzadi and others (2016 SCMR 1417) and Muhammad Nawaz through L.Rs. v. Haji Muhammad Baran Khan through L.Rs. and others (2013 SCMR 1360) that it is mandatory for a beneficiary of an oral transaction to prove through positive evidence the day, the venue, the persons/witnesses in whose presence the alleged transaction was made, the time thereof, the month and year and even the consideration and in order to prove this at the outset all these details are to be mentioned in the pleadings.

9. Apart from the above, since the petitioners were the beneficiaries of the oral transaction, which was reduced into writing (Exh.P1), therefore, in view of law laid down in judgments reported as Islam ud Din (deceased) through L.Rs. and others v. Mst. Noor Jahan (deceased) through L.Rs. and others (PLJ 2016 SC 616), Phull Peer Shah v. Hafeez Fatima (2016 SCMR 1225), Amjad Ikram v. Mst. Asiya Kausar and 2 others (2015 SCMR 1), Ibrahim Kamal v. Mst. Malooka Bibi and others (2012 SCMR 1), and Khaliqdad Khan and others v. Mst. Zeenat Khatoon and others (2010 SCMR 1370) burden to prove the said transactions separately was on their shoulders.

10. Keeping the afore referred case law in juxtaposition with the facts of the present case and as discussed above, initially an oral transaction of gift took place between the petitioners and the deceased which was subsequently reduced into a written deed, hence, it was mandatory for the petitioners to, at the outset, prove the oral transaction and in order to prove the said oral transaction (GIFT), it was mandatory for the petitioners/beneficiaries to have highlighted in their plaint the complete details of the oral

transaction mentioned supra, which ex facie are lacking in the instant case as no such details have been mentioned in the plaint, thus, the petitioners have failed to prove the oral transaction.

11. Petitioners were well aware of the above *lacunae* left by them in their plaint and in order to fill the same, Ghulam Raza, one of the petitioners who appeared as PW.2 has mentioned the names of the persons in presence of whom oral gift was made. The said stipulation is clearly beyond the scope of pleadings, thus, the same cannot be relied upon. For reference reliance can be placed on Muhammad Rafique and another v. Syed Warand Ali Shah and others (2021 SCMR 1068), Abdul Razaq v. Abdul Ghaffar and others (2020 SCMR 202), Moiz Abbas v. Mrs. Latifa and others (2019 SCMR 74), Combined Investment (Pvt.) Ltd. v. Wali Bhai and others (PLD 2016 S.C. 730), Muhammad Nawaz alias Nawaza and others v. Member Judicial Board of Revenue and others (2014 SCMR 914), Messrs Essa Engineering Company Pvt. Ltd. and another (2014 SCMR 922), Muhammad Wali Khan and another v. Gul Sarwar Khan and another (PLD 2010 S.C. 295), Abdul Haque and others v. Shaukat Ali and 2 others (2003 SCMR 74) and Muhammad Hussain v. Khushi Muhammad through L.Rs. pand 5 others (2003 CLC 478).

12. Now adverting to the written gift deed (Exh.P.1), the said document does not show that the land in dispute at the outset was orally gifted to the petitioners by the deceased. The said omission creates serious doubt about the veracity of the claim of the petitioners. Since the original transaction of oral gift could not be proved by the petitioners, therefore, the whole superstructure/edifice built thereon through subsequent written deed would fall on the ground. For reference reliance can be placed on judgments reported as Moulana Atta ur Rehman v. Al Hajj Sardar Umar Farooq and others (PLD 2008 S.C. 663), Executive District Officer (Education), Rawalpindi v. Muhammad Younas (2007 SCMR 1835),

Rehmatullah and others v. Saleh Khan and others (2007 SCMR 729) and Muhammad Tariq Khan v. Khawaja Muhammad Jawad Asami and others (2007 SCMR 818).

13. It shall not be out of place to mention here that one of the marginal witness of the gift deed (Exh.P.1) namely Muhammad Ramzan who appeared as PW.3, has acknowledged that he does not know that what was written in the gift deed. This statement further weakens the stance of the petitioners and creates doubt about the veracity of Exh.P1.

14. For performing and proving a gift, there are three necessary requisites/ingredients which, according to judgment of the Honourable Supreme Court of Pakistan reported as Province of Punjab through A.D. Fisheries, Sialkot v. Rana Abdul Hameed and others [2014 SCMR 1187], have to be proved by the donee, which for convenience are reproduced hereunder:

- a) Proposal by the donor;
- b) Acceptance by the donee; and
- c) Delivery of possession to the donee.

15. In the case in hand, it was mandatory for the petitioners to have proved the necessary ingredients of the gift through unequivocal and clear evidence, however, placing the afore-noted pre-requisites of a valid gift in juxtaposition with the impugned gift deed, it is evident that the same have not been fulfilled.

16. In the above backdrop, a perusal of the record would show that evidence of the petitioners was recorded on 13.03.2010 and petitioner No.1 while appearing as PW.2 in his cross-examination has deposed that at the time of recording of his statement the ages of the petitioners were 18/20 years. If the said statement is read in consonance with Exh.P1, which was executed on 12.06.2004 it has surfaced that petitioners were minors when the gift was made (oral

as well as written). In this background a perusal of the plaint would show that nothing has been mentioned therein with regard to the fact that who accepted the gift on behalf of the petitioners and to whom possession was given as the said exercise could not be undertaken by the petitioners being minors. Similarly, there is no explanation that when the petitioners were minors, how they could execute Exh.P1. In the above backdrop, petitioners have failed to prove the gift (oral as well as written).

17. Since the learned counsel for the petitioners has not been able to point out any jurisdictional defect or procedural impropriety in the impugned judgments and decrees passed by both the learned courts below, therefore, in view of judgments reported as *Nizam-ud- Din and others v. Sheikh Zia ul Qamar and others* (2016 SCMR 24), *Iqbal Ahmed v. Managing Director Provincial Urban Development Board, N.W.F.P. Peshawar and others* (2015 SCMR 799), *Mandi Hassan alias Mehdi Hussain and another v. Muhammad Arif* (PLD 2015 SC 137), *Mst. Zaitoon Begum v. Nazar Hussain and another* (2014 SCMR 1469) and *Haji Muhammad Din v. Malik Muhammad Abdullah* (PLD 1994 SC 291) no interference can be made by this Court in the concurrent findings rendered by the courts below.

18. In view of the above, this revision petition being devoid of any merits is **dismissed**.

(FAISAL ZAMAN KHAN)
JUDGE

Shafaqat Ali*

Approved for Reporting

JUDGE.